

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                               |                                     |                                                                                                                                                                                                                       |
|---------------------------------------------------|---------------------------------------------------------------|-------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Haeley Galeote                   | Team:<br>Squad #16                                            | CCRB Case #:<br>202409369           | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 09/18/2024 5:03 PM | Location of Incident:<br>West 175th Street and Audubon Avenue | 18 Mo. SOL<br>3/18/2026             | Precinct:<br>33                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Wed, 09/18/2024 10:03 PM | CV Reported At:<br>CCRB                                       | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Wed, 09/18/2024 10:03 PM                                                                                                                                                                |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. PO Joshua Moscoso  | 11260  | 960976 | 033 PCT |
| 2. PO Christian Anasa | 14741  | 967422 | 033 PCT |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. PO Steven Gomez  | 09356     | 971963 | 033 PCT  |
| 2. PO Brian Fermin  | 18281     | 963986 | 033 PCT  |
| 3. PO Kevin Cabrera | 09118     | 967440 | 033 PCT  |

| Officer(s)             | Allegation                                                                   | Inv. Div. Recommendation   |
|------------------------|------------------------------------------------------------------------------|----------------------------|
| A . PO Joshua Moscoso  | Abuse: Police Officer Joshua Moscoso detained § 87(2)(b)                     | A . Substantiated          |
| B . PO Joshua Moscoso  | Abuse: Police Officer Joshua Moscoso detained § 87(2)(b)                     | B . Substantiated          |
| C . PO Christian Anasa | Force: Police Officer Christian Anasa used physical force against § 87(2)(b) | C . Unfounded              |
| D . PO Joshua Moscoso  | Abuse: Police Officer Joshua Moscoso frisked § 87(2)(b)                      | D . Within NYPD Guidelines |
| E . PO Joshua Moscoso  | Abuse: Police Officer Joshua Moscoso searched § 87(2)(b)                     | E . Within NYPD Guidelines |

### Case Summary

On September 18, 2024, § 87(2)(b) filed this complaint on behalf of herself and her partner § 87(2)(b) with the CCRB via the online website.

On September 18, 2024, at approximately 5:03 p.m., at West 175<sup>th</sup> Street and Audubon Avenue in Manhattan, Police Officers Joshua Moscoso and Christian Anasa, both of the 33<sup>rd</sup> Precinct, stopped § 87(2)(b) and § 87(2)(b) and PO Moscoso determined to detain them at the stationhouse (**Allegations A-B: Abuse of Authority, substantiated**). PO Anasa allegedly pulled § 87(2)(b) (**Allegation C: Force, unfounded**). Prior to transporting them, PO Moscoso frisked and searched § 87(2)(b) (**Allegation D: Abuse of Authority, within NYPD guidelines; Allegation E: Abuse of Authority, within NYPD guidelines**).

§ 87(2)(b) and § 87(2)(b) were issued summonses for jaywalking and released from the stationhouse (**BR 04, 05**).

The investigation is in possession of seven body-worn cameras (BWC) (**BR 02, 03, 09, 20-23**). The investigation is not in possession of additional video footage.

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Joshua Moscoso detained § 87(2)(b)**

**Allegation (B) Abuse of Authority: Police Officer Joshua Moscoso detained § 87(2)(b)**

§ 87(2)(b) stated (**BR 01**) that on September 18, 2024, at approximately 5:03 p.m., she and § 87(2)(b) started to cross the street at West 175<sup>th</sup> Street and Audubon Avenue in Manhattan. The traffic light was red and they had the pedestrian signal to cross. An unmarked black vehicle approached the crosswalk and moved closer to them several times as they crossed the street. The vehicle ended up on the crosswalk, despite the light still being red, while § 87(2)(b) stood by the front left side of the vehicle. § 87(2)(b) and § 87(2)(b) attempted to walk around the back of the vehicle. § 87(2)(b) saw PO Moscoso in the driver's seat and PO Anasa in the passenger seat. Both officers were identified by § 87(2)(b). The officers did not activate their lights or sirens. PO Moscoso told § 87(2)(b) and § 87(2)(b) that they did not have the right of way to which § 87(2)(b) stated they did because the light was red, and they had a pedestrian cross signal. § 87(2)(b) and § 87(2)(b) again attempted to walk around the back of the vehicle, but PO Moscoso and PO Anasa exited the vehicle and asked them for their IDs stating they were not going anywhere. § 87(2)(b) asked the officers why they needed her ID, but they did not explain. PO Moscoso and PO Anasa requested § 87(2)(b) license to which she told them that she was walking, not driving and that she only had her passport. PO Moscoso told § 87(2)(b) that a passport was not proper identification. § 87(2)(b) stated she could provide her license number, but she did not have her license with her. At some point, PO Moscoso and PO Anasa had called for backup, and upon arrival, PO Anasa took § 87(2)(b) passport, opened it and closed it, and then handcuffed § 87(2)(b). PO Moscoso also handcuffed § 87(2)(b). The officers informed § 87(2)(b) that they were going to get a summons and once at the stationhouse they will learn more about what would happen. Throughout the incident, there were multiple people watching and recording.

The investigation was unable to obtain a statement from § 87(2)(b).

PO Moscoso and PO Anasa stated they were on Audubon Avenue observing a “drug-set,” which was described as a known location where drug sales occurred (**BR 17, 18**). As they were observing the “drug-set,” they heard § 87(2)(b) and § 87(2)(b) make physical contact with their vehicle, though they did not see how. PO Moscoso and PO Anasa noticed that § 87(2)(b) and § 87(2)(b) had crossed the street while the traffic light was still § 87(2)(b). Thus, they exited their vehicle to stop § 87(2)(b) and § 87(2)(b) and issue them a summons for jaywalking. PO Moscoso stated that at some point § 87(2)(b) ID was provided to him. PO Anasa stated that § 87(2)(b) showed him a photo of her ID on her phone. Both officers believed the IDs provided to them were acceptable to issue a summons. However, PO Moscoso made the decision to remove both individuals to the stationhouse because even after their IDs were received, § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) remained aggressive/non-compliant by going back and forth with officers asking why their IDs were needed, what they did wrong, and why they were stopped. PO Moscoso added that a crowd was forming, composed of the people they were observing from the drug-set. PO Moscoso believed it would be safer to issue the summons at the stationhouse. PO Anasa also stated § 87(2)(b) kept going back and forth with officers and was upset at being asked for her ID but could not recall what she was saying. PO Moscoso could not approximate the size of the crowd, but PO Anasa believed it was approximately four people. PO Anasa stated the crowd stood behind the left side of the police vehicle on the sidewalk, while PO Moscoso was unable to recall, but believed they stood less than a car length away. PO Moscoso and PO Anasa stated they knew some of the individuals from the crowd from previously arresting them for selling and possessing narcotics. PO Moscoso added that he had previously performed firearm arrests in the area, but did not know if any of the individuals in the crowd were from the arrests. PO Anasa did not recall what else the crowd may have been doing other than watching them. PO Moscoso stated the crowd was “talking trash,” not recalling what exactly they were saying, and at no point did the crowd physically interfere with officers.

In PO Moscoso’s BWC (**BR 02**) at 01:15 as PO Moscoso guides § 87(2)(b) against his police vehicle, he asks § 87(2)(b) if he has ID and § 87(2)(b) states no. At 01:45, as § 87(2)(b) looks through a bag for his ID, § 87(2)(b) informs him that both of their passports are in the bag to which PO Moscoso states, “That’s all you need.” At 01:54, § 87(2)(b) projects her voice to someone out of frame and asks them to record. At 01:57, three men are seen a few feet behind the police vehicle, approaching the scene. At 02:02, PO Moscoso tells the men that they are in the street and to get out the street, to which one of them laughs and he and one of the other men, proceed to walk to behind the left side of the police vehicle. At 02:04, there is another male in a white t-shirt seen standing in the street about a car’s length away, looking in PO Moscoso’s direction. At 02:10, § 87(2)(b) tells someone on the left side of the police vehicle that they were crossing the street as the light was red, but BWC is unable to capture if anyone responds back. At 02:17, PO Moscoso tells someone behind the police vehicle to mind their business. At 02:54, § 87(2)(b) hands § 87(2)(b) ID to PO Moscoso. At 03:14, PO Anasa states, “That’s one ID. Is there a second one?” § 87(2)(b) tells him to give her a second to which PO Anasa states they are on his time. In response, § 87(2)(b) states they are not, and at 03:23, PO Anasa states, “I don’t have to do this in the street, I can do this in the precinct.” § 87(2)(b) asks PO Anasa what he would do in the precinct to which he responds, “Write you the summons.” At 04:03 PO Moscoso states, “I’m going to 92 both of them.” From 02:30 to 04:03, there are people heard in the background speaking loudly, some in Spanish, but BWC does not capture them, nor can it be made out what they are saying.

In PO Anasa’s BWC (**BR 03**) at 01:16, § 87(2)(b) tells PO Anasa that she does not have her ID to which PO Anasa asks her if she has a photo of it. At 01:19, § 87(2)(b) states she does not have a photo of her ID and states she has her ID number, to which PO Anasa states he needs a photo of her ID. At 02:12, the three men are seen on the sidewalk across the left side of the police vehicle. At 02:23, the men begin walking away. From 02:35 to 03:03, voices heard in the background loudly speaking, but no individuals seen until 03:03, when one of the initial men is again seen on the sidewalk standing far from the police vehicle. At 02:56, after PO Moscoso receives § 87(2)(b) ID he retrieves his phone. At 03:34, § 87(2)(b) shows a photo of her ID to PO Anasa and begins reading numbers off of it to which PO Anasa stated he does not care about the numbers. At 03:38, PO Anasa pulls up his phone and § 87(2)(b) states, “You said you need a picture, I have a picture of my ID.” At 03:50, PO Anasa tells § 87(2)(b) that he asked for her driver's license to which she points at her phone screen stating she is showing him. In response, at 03:54, PO Anasa states, “You are now.” At 03:56, PO Moscoso places his phone and § 87(2)(b) ID in his pant pocket after PO Gomez arrives on scene and at 04:02 states he will 92 both to which PO Anasa states, “alright.” From 03:10 to 04:02, BWC does not capture anyone on the sidewalk or a crowd, and no one is heard stating anything to the officers. At 04:47, PO Anasa

asks § 87(2)(b) to turn around to which she asks if she is being arrested, and PO Anasa confirms she is. At 04:50, § 87(2)(b) asks what she is being arrested for to which PO Anasa states that she is being issued a summons at the precinct.

In PO Gomez's BWC (BR 20) at 00:56, four men are standing on the sidewalk far from the left-hand side of PO Moscoso's and PO Anasa's police vehicle. One of the individuals with a red hat seems to have a phone in hand facing the officers. At 01:03, PO Moscoso requests a cage vehicle to the location as PO Gomez walks up to him.

§ 87(2)(b) and § 87(2)(b) were issued summonses for jaywalking (BR 04, 05).

The command log shows that § 87(2)(b) and § 87(2)(b) arrived at the stationhouse at 5:20 p.m. and were released with summonses at approximately 7:50 p.m. (BR 25).

Patrol Guide Procedure 212-11 (BR 08) states that when conducting a Level 3 investigative Terry stop, a suspect may be detained only as long as necessary to confirm or dispel an officer's suspicion that the suspect was committing, committed, or was about to commit a felony or penal law misdemeanor. The authority to detain the suspect ends when the tasks tied to the reason for the stop are completed or reasonably should have been completed. It also instructs officers to not transport or move the suspect from the location where she/he is stopped unless she/he voluntarily consents or there is an exigency necessitating relocation (e.g., hostile crowd, threat to safety, hospital show-up, etc.).

Patrol Guide Procedure 209-09 (BR 26) states that a valid driver's license, valid passport, New York State non-driver identification, among others, are valid forms of identification. Officers should remove any violators to the command for investigation if doubt concerning their identity exists.

BWC confirmed that § 87(2)(b) and § 87(2)(b) eventually complied with providing their identification to the officers and the officers stated that they were valid forms of identification. Although § 87(2)(b) and § 87(2)(b) were complaining and upset about the stop, BWC showed that they were not showing aggression towards the officers. Additionally, although BWC captured § 87(2)(b) telling a group of four males nearby to record the interaction, the men were not physically interfering with police activity, being hostile or showing aggression, did not verbally interfere, or be disruptive. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) it is recommended that **Allegations A and B** be closed as **Substantiated**.

**Allegation (C) Force: Police Officer Christian Anasa used physical force against § 87(2)(b)**

§ 87(2)(b) stated (BR 01) that as PO Anasa placed § 87(2)(b) in handcuffs, he pulled her arm and tightly handcuffed her handcuffs.

The investigation was unable to obtain a statement from § 87(2)(b) due to no additional contact information.

PO Anasa stated (BR 17) that he grabbed § 87(2)(b) arms and placed them behind her back and never used any force against her. After § 87(2)(b) was handcuffed § 87(2)(b) continuously moved her body around and would attempt to pull away from PO Anasa who was holding onto her arm.

In PO Anasa's BWC (BR 03) at 04:55, PO Anasa has his hand on § 87(2)(b) right shoulder as he guides her in turning. At 05:03, PO Anasa grabs § 87(2)(b) left arm and she pulls it away. At 05:08, PO Anasa is heard locking a handcuff on § 87(2)(b) left wrist and at 05:10, he tells her to stop resisting and that she is tensing up as § 87(2)(b) continues to state that she needs a

female. At 05:14, PO Moscoso holds § 87(2)(b) right wrist behind her back and PO Anasa is heard locking the handcuffs at 05:17. At 06:05, § 87(2)(b) turns to face PO Anasa and then turns her body to the opposite side. At 06:09, § 87(2)(b) asks PO Anasa why he is pulling her. The footage does not show either PO Anasa or § 87(2)(b) arms and does not capture any swift movements consistent with pulling. At 06:11, PO Anasa states, “You’re not moving around.” At 06:17, PO Anasa states his hand does not move and that § 87(2)(b) is not supposed to move. At 06:46, PO Anasa tells § 87(2)(b) to stop pulling away as she continues moving her body around to which § 87(2)(b) states she is not pulling. At 06:48, § 87(2)(b) yells that PO Anasa is pulling her and then pushes her left side into PO Anasa covering his BWC with her body as she states, “I don’t want to be on top of you.” At 06:51, PO Anasa tells § 87(2)(b) to backup as he places a hand on her left shoulder creating space between them.

In PO Moscoso’s BWC (**BR 02**) at 05:08, after § 87(2)(b) pulled her left arm from PO Anasa, PO Anasa grabs her left wrist and § 87(2)(b) is seen tensing her left arm in the police vehicle window as she motions her left hand at someone behind the police vehicle telling them to record. At 05:15, PO Anasa is placing the handcuff on § 87(2)(b) left wrist and then PO Moscoso brings her right wrist behind her back. At 05:24, PO Anasa locks the handcuffs on both of her wrists.

In PO Cabrera’s BWC (**BR 09**) at 01:12, PO Anasa holds § 87(2)(b) by her left bicep. At 01:13, as § 87(2)(b) turns her left side to PO Anasa and then turns her body to the right, PO Anasa is not seen pulling her as she proceeds to allege. From 01:17 to 01:55, PO Anasa is not seen pulling § 87(2)(b) despite alleging he does so again at 01:55. At 01:55, § 87(2)(b) also steps into PO Anasa causing PO Anasa to take a step back.

§ 87(2)(g)  
BWC  
showed that PO Anasa never pulled § 87(2)(b) § 87(2)(g)  
it is recommended that **Allegation C** be closed as **Unfounded**.

**Allegation (D) Abuse of Authority: Police Officer Joshua Moscoso frisked § 87(2)(b)**

**Allegation (E) Abuse of Authority: Police Officer Joshua Moscoso searched § 87(2)(b)**

The following allegations were pleaded solely from the review of the officers’ BWC footage.

The investigation was unable to obtain a statement from § 87(2)(b)

PO Moscoso stated (**BR 18**) that § 87(2)(b) and § 87(2)(b) were only being detained to be issued a summons at the stationhouse. After handcuffing § 87(2)(b) PO Moscoso frisked and searched § 87(2)(b) pants pockets. PO Moscoso stated it is procedure to do so after handcuffing any individual that will be removed to the stationhouse, even if they are going to be issued a summons.

In PO Cabrera’s BWC (**BR 09**) at 01:50, PO Moscoso grips onto the outside of § 87(2)(b) right pant pocket.

In PO Moscoso’s BWC (**BR 02**) at 06:47, § 87(2)(b) states he has nothing on him. At 06:49, BWC does not capture where PO Moscoso’s hand is as he stands by the left side of § 87(2)(b) body. At 06:50, § 87(2)(b) states, “That is my phone,” and at 06:52, PO Moscoso’s right hand is seen holding onto a phone. At 06:53, PO Moscoso states he will hold all three of § 87(2)(b) phones. At 06:56, PO Moscoso states that he does not want him to have the phones in his pocket. At 06:58, the three phones are seen in PO Moscoso’s right hand.

No other BWC captures PO Moscoso searching § 87(2)(b) pocket from a better angle (**BR 03, 09, 20-23**).

All prisoners while in police custody, and control of members of service will be searched prior to being transported from any location and upon arrival at the transport destination, Patrol Guide Procedure 210-01 (**BR 27**).

It is undisputed that PO Moscoso was removing § 87(2)(b) to the stationhouse to be issued a summonsed. § 87(2)(g)

it is recommended that **Allegations D** and **E** be closed as *Within NYPD Guidelines*.

#### Civilian and Officer CCRB Histories

- § 87(2)(b)
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- PO Moscoso has been a member of service for nine years and has been a subject in 24 complaints and 62 allegations, of which 11 were substantiated:
  - 202205105 involved a substantiated allegation of threat to damage/seize property against PO Moscoso. The Board recommended Command Discipline B and the NYPD did not impose any disciplinary action.
  - 202301299 involved a substantiated allegation of a frisk and search of person against PO Moscoso. The Board recommended Command Discipline B and the NYPD did not impose any disciplinary action.
  - 202301589 involved a substantiated allegation of physical force, improper use of BWC, threat of arrest, and two substantiated allegations of discourtesy, word, against PO Moscoso. The Board recommended charges and the NYPD has not yet imposed discipline.
  - 202301978 involved a substantiated allegation of retaliatory summons against PO Moscoso. The Board recommended charges and the NYPD has not yet imposed discipline.
  - 202305395 involved a substantiated allegation of a question against PO Moscoso. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.
  - 202307170 involved a substantiated allegation of property damage against PO Moscoso. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline. § 87(2)(g)
- PO Anasa has been a member of service for five years and has been a subject in five complaints and 15 allegations, none of which have been substantiated. § 87(2)(g)

#### Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of December 16, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR 16**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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**RPBP History**

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.
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Squad No.: 16

|               |                       |                     |                   |
|---------------|-----------------------|---------------------|-------------------|
| Investigator: | <u>Haeley Galeote</u> | <u>Inv. Galeote</u> | <u>03/17/2025</u> |
|               | Signature             | Print Title & Name  | Date              |

|               |                   |                      |                   |
|---------------|-------------------|----------------------|-------------------|
| Squad Leader: | <u>Patrick Yu</u> | <u>IM Patrick Yu</u> | <u>03/17/2025</u> |
|               | Signature         | Print Title & Name   | Date              |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |